

TENTATIVE RULING

John Nai, Jr., et al. v. City of Carmel-by-the-Sea (25CV005854)

Defendant Pacific Gas and Electric Company’s Motion for Relief from Waiver of Objections to Plaintiffs Form Interrogatories, Special Interrogatories, and Requests for Production of Documents:

Defendant Pacific Gas and Electric Company (“PG&E”) seeks relief from waiver of its objections to Plaintiffs’ discovery requests following PG&E’s late service of written responses and responsive documents. Plaintiffs oppose the motion on the basis that PG&E has not provided substantially compliant responses or demonstrated a sufficient excuse for its delay. Plaintiffs further seek sanctions against PG&E for misuse of the discovery process.

PG&E’s motion for relief from waiver is **GRANTED**. Plaintiffs’ request for sanctions is **DENIED**.

Under California Code of Civil Procedure section 2030.290(a), a party who fails to timely respond to interrogatories automatically waives all objections, including those based on privilege and work product protection. The court may grant relief from that waiver only if the moving party satisfies two conjunctive conditions: (1) the party has subsequently served a response that is in substantial compliance with the statutory provisions governing interrogatory responses, and (2) the failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Cal Code Civ. Proc. § 2030.290.) Substantively identical requirements govern the consequences of failure to timely respond to a request for production of documents and the basis to seek relief therefrom. (Cal. Code Civ. Proc. §2031.300.)

The first factor necessary for relief from waiver, substantial compliance, focuses on whether the untimely responses substantively address each discovery request in a complete and straightforward manner consistent with the form and content requirements of the Civil Discovery Act. The assertion of waived objections does not necessarily prevent a finding of substantial compliance. (*Katayama v. Continental Investment Group* (2024) 105 Cal.App.5th 898, 909–910.) This is particularly true in light of the fact that, under the Discovery Act, a finding of substantial compliance can relieve a party of the waiver of such objections. (Cal. Code Civ. Proc. §2031.300.)

The excusable neglect prong — modeled on but now superseding California Code of Civil Procedure section 473 in this context — requires a genuine, non-tactical explanation for the delay, including an explanation for why no extension was sought. (*Scottsdale Ins. Co. v. Superior Ct.*, (1997) 59 Cal.App.4th 263, 275.) While *City of Fresno v. Superior Court* (1988) 205 Cal.App.3d 1459 gives an example of a court finding that an attorney’s error was insufficient to establish excusable neglect in that case, the case does not establish a categorical rule, and other cases interpret the definition of excusable neglect broadly. (See *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1419–1420.)

In this matter, the responses at issue were due on June 30, 2026. PG&E served written responses (including objections) on July 17, 2026, and produced non-confidential documents on August 21,

2026. PG&E continued to withhold confidential documents pending the execution of a protective order by all parties, which has not yet occurred.

PG&E's counsel presented evidence that she did not initially realize discovery had been served because it was attached to an email from Plaintiffs' counsel with multiple other documents, and she was busy with other matters. PG&E's counsel discovered the oversight on July 13, 2026, while preparing for a case management conference in the case, and she immediately contacted Plaintiff to explain the issue and seek an extension.

Based on the record before the court, the court finds that the discovery responses served were in substantial compliance and the fact that responses continued to include the contested objections and relied upon documents does not impact that finding. Deficiencies in specific responses can be resolved on a further motion to compel. Further, while there was a delay in producing the non-confidential documents, those documents were produced prior to the hearing of this motion, and negotiation over a stipulated protective order continues, which is appropriate prior to the production of confidential documents. The court is satisfied with counsel's explanation regarding the oversight error which caused the delay was the result of mistake or inadvertence. The court declines to issue sanctions but may do so on a further motion to compel if warranted.

PG&E is to prepare the court's order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.